

date of January 14, 2026, were served on the Secretary of State pursuant to the Court's August 22, 2025 order. After reviewing the Declaration of Counsel Kelsey J. Ibarrola filed on December 17, 2025, the Court finds that Plaintiff Ilham Alhafnawi has complied with this Court's August 22, 2025 order requiring him to accomplish service on the Secretary of State with the re-notice of hearing of this Petition for January 14, 2026.

No timely opposition was received from Defendant. California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose Petition after service is a deemed to be Defendant's consent to the Petition.

Based on the foregoing, the Court finds that there is good cause to grant Plaintiff's Petition.

Ruling

Plaintiff Ilham Alhafnawi's Petition to Remove Mechanic's Lien and for Slander of Title against Defendant CR Construction is **granted**. This Court issues this order pursuant to California Civil Code § 8488 directing the release of the mechanic's lien recorded by Defendant CRC on December 7, 2023, as Instrument No. DOC-2023-0130006, in the official records of Contra Costa County.

14. 9:00 AM CASE NUMBER: C25-02151
CASE NAME: JUSTIN MIDYETT VS. PACIFIC GAS AND ELECTRIC COMPANY
***HEARING ON MOTION IN RE: STRIKE PLTFs COMPLAINT**
FILED BY: PACIFIC GAS AND ELECTRIC COMPANY
TENTATIVE RULING:

Before the Court is Defendant Pacific Gas and Electric Company Motion to Strike. Defendant PG&E seeks to strike allegations in the Complaint relating to Plaintiffs' claims for punitive damages. Specifically, PG&E seeks to strike paragraphs 25, 30, 36, and 43 (from the Prayer).

Defendant's Motion is **granted** as outlined below.

Summary of Allegations

Plaintiff commenced working for PG&E as a Traffic Control Flagger on September 11, 2023. On June 15, 2024, he was struck by a vehicle while at work at a PG&E job site in Lafayette, California. He promptly reported his injury to his supervisor. His supervisor told him the injury would be a big problem since he was on probation. He also instructed Plaintiff to obtain a police report regarding the

incident.

About a week later, Plaintiff was limping at work. Toward the end of the day a supervisor asked about the police report. Plaintiff said he was having difficulty getting it. The supervisor said he thought Plaintiff wasn't going to make an issue about the injury – to which Plaintiff responded he wasn't going to say anything and returned to work.

Plaintiff also alleges that he was told he was being deceitful when he intentionally under reported his work hours. When he returned to work, he was told to wait for an ergonomic specialist and then to call the Emergency Nurse Hotline. When he asked his supervisor what he should say to the nurse, he was “curtly told to tell her how he was feeling.” After explaining his injuries, he was put on Workers Compensation and was placed on modified duties.

Plaintiff then claims he was subject to a pattern of retaliation and mistreatment “including being marked as “No Call, No Show” despite being present; being forced to revise incident reports to benefit management; being placed under unreasonable restrictions post-injury; facing false rumors about dishonesty spread throughout his workplace.” He told his supervisor that he felt he was being harassed and was told to report it to HR.

On August 20, 2024, Plaintiff awoke with pain in his injured foot, so he texted his supervisor. He did not receive a response. He was terminated that same day. Plaintiff indicated he would pick up his check the next day, but was unable to. As such, his supervisor mailed the check, which Plaintiff received on September 11, 2024.

Based on the above, Plaintiff filed his complaint on July 29, 2025 alleging four causes of action: (1) disability discrimination; (2) retaliation; (3) harassment based on disability; and (4) waiting time penalty for nonpayment of wages. Included in the Complaint is a Prayer for punitive and exemplary damages.

Standard of Review

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. (“CCP”) § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 [“matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

Analysis

To support punitive damages, the complaint must allege the ultimate facts of the defendant's oppression, fraud or malice. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 316.) Punitive damages are awardable only where there is clear and convincing evidence of “malice.” “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294.) “‘Despicable conduct’ is conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 331.)

The mere allegation that an intentional tort was committed is not sufficient to warrant punitive damages. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) There must also be circumstances of “aggravation or outrage ... or a fraudulent or evil motive on the part of the defendant.” (*Taylor v. Superior Court of Los Angeles County* (1979) 24 Cal.3d 890, 894.) “Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (*Grieves*, 157 Cal.App.3d at 166.) “Punitive damages ‘are not a favorite of the law and the granting of them should be done with the greatest caution.’” (*Troensegaard v. Silvercrest Indus.*, (1985) 175 Cal.App.3d 218, 227.)

Additionally, an award of punitive damages against a corporation “must rest on the malice of the corporation’s employees.” (*Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167.) However, the “law does not impute every employee’s malice to the corporation. Instead, the punitive damages statute requires proof of malice among corporate leaders: the ‘officer[s], director[s], or managing agent[s].’” (*Ibid.* quoting Cal. Civ. Code § 3294, subd. (b).)

The “law does not impute every employee’s malice to the corporation.” (*Cruz*, supra, 83 Cal.App.4th at 167.) “Instead, the punitive damage statute requires proof of malice among corporate leaders: the ‘officer[s], director[s], or managing agent[s].’” (*Ibid.* quoting Cal. Code Civ. Proc. § 3294, subd. (d).) A ‘managing agent’ is an employee “who ‘exercise[s] substantial discretionary authority over decisions that ultimately determine *corporate policy*.’” (*Ibid.* italics in original.)

‘Corporate policy’ is “the general principles which guide a corporation, or rules intended to be followed consistently over time in corporate operations.” (*Ibid.*) “A ‘managing agent’ is one with substantial authority over decisions that set these general principles and rules.” (*Id.* at 167-68.)

Plaintiff cites *Colucci v. T-Mobile USA, Inc.* 48 Cal.App.5th 442 to support his claim that the complaint contains enough detail to support his claims. Plaintiff’s own outline of *Colucci* establishes the difference. In *Colucci* there was evidence that the corporate employee at issue:

“was a district manager responsible for managing nine retail stores and 100 employees. Individual store managers reported to him, and he in turn reported to a more senior manager. Robson had independent, final authority to hire or fire employees within his district; indeed, he alone decided to fire Colucci. Further, as in *White*, Robson had substantial discretionary authority over daily store operations, which led to the ad hoc formulation of policy. For example, Robson decided whether and where to transfer employees; whether to institute disciplinary measures; and whether and how to investigate employees’ reported concerns. These decisions affected company policy over a significant aspect of T-Mobile’s business.”

The instant complaint contains several general allegations regarding actions taken by an unnamed ‘supervisor’ with relation to Plaintiff, including telling him his injury might be a ‘big deal’ since he was on probation, told Plaintiff he was being deceitful for not accurately reporting his time, telling him “curtly” to tell the emergency nurse how he was feeling, and telling Plaintiff to report his concerns regarding feeling harassed to HR. Nowhere in the complaint are there any factual allegations describing this supervisor’s duties or responsibilities. There is no indication that s/he exercised any control over corporate policy. There are no facts showing that s/he had any control over Plaintiff’s

employment. In other words, none of the key facts outlined in *Colucci* are present in Plaintiff's complaint.

Plaintiff also argues that he is not required to specifically identify the managing agent at the pleading stage, citing *Credit Managers Assn. v. Superior Court* (1978) 51 Cal.App.3d 352 and *Okun v. Superior Court* (1981) 29 Cal.3d 442. (Opp. at C. 2.) Neither of those cases deal with the pleading requirements for a punitive damages claim against a corporate defendant. In fact, neither case deals with punitive damages at all.

Leave to Amend

"Where a defendant has not had an opportunity to amend the complaint in response to a [motion to strike], leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment." (*Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412.) As the complaint does not show on its face it is incapable of amendment, the Court will **grant leave to amend** since this is the first time the Court has addressed the sufficiency of the pleadings.

Conclusion

Defendant's motion to strike is **granted**. Plaintiff is granted leave to amend. Plaintiff shall file any amended complaint within 15 days of entry of order on this motion.

15. 9:00 AM CASE NUMBER: N25-1866

CASE NAME:

***HEARING ON MINOR'S COMPROMISE PETITION TO APPROVE COMPROMISE OF DISPUTED CLAIM OF MINOR FILED ON 9-19-25 BY ELIZABETH ZARATE**

FILED BY:

TENTATIVE RULING:

Summary

Petitioner Elizabeth Zarate's Petition for Approval of Compromise of Minor Yarehzy Zarate Solares (DOB 1/25/2008) ("Minor"), filed on September 19, 2025, is **granted**, as set forth below.

Background

On September 19, 2025, Petitioner Elizabeth Zarate's, parent and guardian ad litem for her son, Minor, filed the Petition through assisting counsel Thomas Goodwin., to compromise the claim that Minor had against Elizabeth Zarate Solares and Taylor Robin Bomar related to an accident that occurred on May 21, 2023 in Byron, California. In that accident, Minor sustained to his forehead and loss consciousness. Petitioner represents that Minor has received treatment at John Muir Hospital, including imaging and chiropractic treatment. He has fully recovered and there are no permanent injuries. The Defendants collectively offered settlement in the amount of \$15,000, of which \$12,500 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$2,500 represents a negotiated deduction from the settlement, is used to satisfy any liens for medical expenses. Petitioner prepared a proposed order to deposit funds into a blocked account for the